Current Affairs 04-11-2026

Credit - Drishti Ias

Transgender Persons Act 2019 Impact on Women’s Rights

★ ★ ★ ☆ ☆

For Prelims: Right to Life and Personal Liberty , Transgender Persons (Protection of Rights) Act, 2019 , National Council for Transgender Persons , Article 15(3)

For Mains: Constitutional provisions relating to gender equality and transgender rights, Articles 14, 15, 16 and 21 and the protection of transgender persons, Article 15(3) and the scope of affirmative action for women.

Source: TH

Why in News?

The Supreme Court of India issued a notice to the Union Government regarding a Public Interest Litigation (PIL) filed by *Women’s Declaration International India* . The petition challenges the **Transgender Persons (Protection of Rights) Act, 2019** , and its **2026 amendments** , arguing that the legal recognition of gender identity should not automatically entitle transgender individuals to **constitutional protections and affirmative action meant exclusively for biological women.**

Summary

- The debate over the Transgender Persons Act, 2019 and its 2026 amendment highlights constitutional concerns surrounding gender identity, women's affirmative action, political representation, bodily privacy and safety.
- A balanced approach requires harmonising transgender rights with women's rights through legal clarity, targeted affirmative action, inclusive infrastructure and gender-sensitive safeguards.

What is the Transgender Persons (Protection of Rights) Act, 2019?

- **About** : The **Transgender Persons (Protection of Rights) Act, 2019** was enacted to ensure the welfare, dignity, and mainstream integration of the transgender community. It was formulated based on the landmark **NALSA v. Union of India (2014)** Supreme Court judgment, which legally recognized transgender individuals as the "third gender."
- **Key Features:**
  - **Anti-Discrimination:** Strictly prohibits discrimination in education, healthcare, and employment.
  - **Right to Identity:** Recognised the statutory right to self-perceived gender identity, aligning with the **K.S. Puttaswamy v. Union of India (2017) judgment** which recognised privacy, including personal and sexual identity, as an intrinsic part of the **Right to Life and Personal Liberty under Article 21.**
  - **Certification Process:** Under the Transgender Persons (Protection of Rights) Act, 2019, Section 6 provides for an **identity certificate** issued by the District Magistrate recognising a person as transgender.
    - Section 7 allows a revised certificate changing the recorded gender to male or female following gender-affirming medical procedures, supported by a medical certificate.
  - **Institutional Framework:** Created the **National Council for Transgender Persons (NCTP)** to guide government policy.
- **Transgender Persons (Protection of Rights) Amendment Act, 2026:**
  - **Narrowed Definition:** The amendment **narrows the legal definition of transgender persons** , focusing largely on traditional socio-cultural identities (such as **hijras or kinnars**) and specific intersex variations while excluding many non-binary and genderqueer identities.
  - **Removal of Self-Perceived Identity:** The 2026 amendment officially omitted Section 4(2) of the 2019 Act, thereby removing the statutory right to a **"self-perceived gender identity".**
  - **Mandatory Medical Scrutiny:** The process of obtaining a Certificate of Identity was overhauled. The District Magistrate can now only issue a certificate after examining the recommendation of a **state/UT-level Medical Board** headed by a Chief Medical Officer.
- **Judicial Precedents in Conflict:**
  - **NALSA (2014) vs. Supriyo (2023):** The petitioner seeks to interpret NALSA alongside Supriyo v. Union of India (2023), arguing that constitutional recognition of gender identity should be distinguished from eligibility for sex-specific protections and affirmative action.

What are the Concerns Regarding the Transgender Persons (Protection of Rights) Act, 2019?

- **Article 15(3) and the Definition of "Women"** : Biological women argue that under **Article 15(3)** of the Constitution which empowers the State to make special provisions for women - the term "women" must be interpreted to mean biological females.
  - They argue this definition is necessary to recognize the unique historical **subjugation and distinct physiological realities that biological women face,** which form the foundational basis for female affirmative action.
- **Dilution of Political Representation:** **Articles 243D and 243T of the Constitution** mandate the reservation of seats for women in local self-government (Panchayats and Municipalities) to counter deep-rooted patriarchy.
  - Biological women argue that allowing transwomen (assigned male at birth) to contest these specifically reserved seats dilutes the quota meant for biological women.

- This concern was practically highlighted in the case of ***Anjali Guru Sanjana Jaan v. State of Maharashtra (2021)*** , where a transwoman was allowed to contest village panchayat elections from a seat reserved for women.

- **Bodily Privacy in Sex-Segregated Spaces:** Biological females argue that permitting individuals who are biologically male but hold a "female" identity certificate to enter female-only prisons or domestic violence shelters poses severe psychological and physical security concerns.
  - They emphasize that **female inmates** , many of whom may be victims of male violence, require strictly **sex-segregated spaces for trauma recovery, dignity, and absolute safety.**
- **Ambiguity in Criminal Justice Safeguards:** Under the **Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023** female suspects and victims are granted specific procedural rights, such as the right to be searched strictly by female police officers and protections against being arrested after sunset.
  - Women argue that if a biological male possesses a legal certificate identifying as female, law enforcement faces dangerous administrative ambiguity over which procedural safeguards apply, **potentially compromising the safety of female detainees and officers alike.**
- **Fairness in Competitive Sports** : Experts argue that integrating transgender women into female sporting categories compromises fair competition due to **physiological advantages (like bone density and muscle mass)** retained from male puberty.
  - However in **Anamika v. State of Kerala (2022),** the Kerala High Court upheld transgender persons' right to compete in their self-perceived gender category, highlighting the **need for clear sporting eligibility rules** to balance inclusion and fair competition.

What Measures Are Needed to Balance Women's Rights and Transgender Rights in India?

- **Defining "Sex" vs. "Gender":** The legislature must clarify that for laws pertaining to specific affirmative action (e.g., maternity benefits, female political quotas), "sex" refers to biological sex at birth. Conversely, **"gender identity" should be the metric for anti-discrimination laws and social welfare.**
- **Horizontal Reservations:** Karnataka became the **first Indian state to provide a 1% horizontal reservation for transgender persons** across all caste categories in civil services.
  - Replicating this nationally ensures that the transgender community **receives direct, uncompromised affirmative action** without encroaching upon the quotas meant to uplift biological females.
- **Parallel Infrastructure:** Instead of forcing integration that compromises female bodily privacy, the government must fund and build **"Third-Gender" or inclusive infrastructure** , including dedicated transgender wards in prisons and gender-neutral public washrooms.
- **Creation of "Open" Categories:** Indian sporting bodies and the **Sports Authority of India (SAI)** should align with the policies of international federations like **World Athletics and World Aquatics (FINA).**
  - These bodies protect the integrity of the female category by restricting it to biological females, while **simultaneously creating an "Open Category"** where transgender athletes can compete freely and fairly without facing discrimination.
- **Dual-Recording Systems:** Official documents (such as the Census, medical records, and the **National Crime Records Bureau**) should adopt a dual-recording system that notes both *biological sex at birth* and *current legal gender identity* .
  - This ensures that sex-disaggregated data remains uncorrupted, while still respecting the individual's

gender identity.

Conclusion

The path forward lies in the constitutional doctrine of **Harmonious Construction** . The State must fulfill its obligation to bring the transgender community out of the margins, but this inclusion must be achieved through the **creation of new, dedicated resources, rights, and infrastructure.** Clear statutory boundaries, coupled with parallel empowerment mechanisms, are essential for a truly equitable society.

Drishti Mains Question:

Affirmative action should address the distinct vulnerabilities of marginalised communities without creating competition between disadvantaged groups. Discuss with reference to women's and transgender rights in India.

Frequently Asked Questions (FAQs)

1. What is the Transgender Persons (Protection of Rights) Act, 2019?
It is a law aimed at protecting transgender persons from discrimination and ensuring equality in education, employment, healthcare and public services.

2. What was the significance of the NALSA judgment, 2014?
In NALSA v. Union of India (2014), the Supreme Court recognised transgender persons as a third gender and upheld their rights to equality, dignity and self-identification.

3. What are the key changes introduced by the Transgender Persons (Protection of Rights) Amendment Act, 2026?
It narrows the definition of transgender persons, introduces medical-board scrutiny for identity certification and strengthens penalties for specified offences.

4. Which constitutional provisions govern women's political representation in local bodies?
Articles 243D and 243T provide for reservation of seats for women in Panchayats and Municipalities, respectively.

5. What is the significance of Article 15(3) of the Indian Constitution?
It empowers the State to make special provisions for women and children, providing a constitutional basis for gender-specific affirmative action.

[Watch Video on YouTube: ▶ **https://www.youtube.com/embed/BShsnLoF80U**]

UPSC Civil Services Examination, Previous Year Questions (PYQs)

Mains

Q. Right to privacy relating to self-identity is very dear to every human being and is well protected under Article 21 of the Constitution. In this context, examine the effect of the 2026 amendment to the Transgender Persons (Protection of Rights) Act, 2019. **(2026)**

SC on Balancing Informational Privacy and Press Freedom

★ ★ ☆ ☆ ☆

Source: TH

The Supreme Court of India has sought a response from the Union Government on a petition by the Digital News Publishers Association (DNPA) challenging the **Digital Personal Data Protection (DPDP) Act, 2023,** over concerns that it severely curtails investigative journalism and transparency.

- **Classification as 'Data Fiduciaries':** The DPDP Act, 2023 lacks specific exemptions for journalistic activities. Neither **Section 7** (Certain Legitimate Uses) nor **Section 17** (Exemptions) provides a statutory carve-out for the media raising concerns over restrictions on public-interest reporting.
  - This leads reporters to be treated as **"data fiduciaries"** forced to seek prior consent from the very public functionaries they are investigating.
  - Under the DPDP Act, 2023, a Data Fiduciary is an entity that decides why and how personal data is processed, either alone or with others.
- **Threat to Confidential Sources: Section 36** of the Act empowers the Central Government to demand information from fiduciaries, which could compromise source confidentiality and deter whistleblowers.
- **Arbitrary Censorship Risks:** Section 37 of the DPDP Act, 2023 empowers the Centre to block online information following a **Data Protection Board** reference involving at least two monetary penalties, subject to a hearing and written reasons, raising concerns **over press freedom, lack of journalistic exemptions and potential state pre-censorship.**
- **Dilution of the RTI Act, 2005:** The DNPA petition also challenges Section 44(3) of the DPDP Act, which amends Section 8(1)(j) of the **Right to Information (RTI) Act, 2005.**
  - Originally, Section 8(1)(j) exempted personal information from disclosure unless the authorities were satisfied that a "larger public interest" justified its release.
  - The DPDP Act has removed this public-interest qualification. Now, all "personal information" is broadly exempted from RTI disclosure, even if exposing it serves a critical public interest.
  - Restricting access to asset disclosures and tender records could shield public officials from corruption scrutiny and weaken investigative journalism.
- **Right to Privacy vs. Freedom of Press:** The Supreme Court emphasized the need to carefully balance citizens' fundamental right to privacy (upheld under Article 21 in the ***K.S. Puttaswamy* judgment, 2017)** with the freedom of the press, which is constitutionally protected under **Article 19(1)(a) (Freedom of Speech and Expression).**
- **Broader Constitutional Challenge:** The DNPA petition is linked to the pending ***Venkatesh Nayak v. Union of India (2026),*** which questions the DPDP framework on grounds including the right to information, excessive government access to personal data and inadequate safeguards against surveillance.

- **Regulatory Complexities:** The Centre highlighted the difficulty of legally defining "journalists" for statutory protection in the modern digital age, given the rapid shift of young audiences toward independent social media content creators.

Read more: **Balancing Censorship and Freedom of Speech**

1st International Maize Conference 2026

★ ★ ☆ ☆ ☆

Source: PIB

The 1st International Maize Conference 2026, themed **“Maize Revolution for Food, Feed, Fodder, Fuel and Sustainability in the Changing World” (M4FS)** , was held in Hyderabad, Telangana, bringing together scientists, policymakers and industry stakeholders to enhance maize productivity, research and sustainable value-chain development.

- **Production Target:** India's **maize production has reached approximately 55 million tonnes** , with a **proposed target of 75 million tonnes** over the next decade and a 1.5-fold increase in productivity through technological innovation, improved crop management and efficient resource utilisation.
- **5F Approach:** Proposed expanding the traditional **4F framework (Food, Feed, Fodder and Fuel)** to include Farmers, placing farm profitability and sustainable livelihoods at the centre of maize research and development.
- **Systems-Science Approach:** Emphasised integrating **crop breeding, improved agronomic practices** and resource-efficient cultivation to bridge yield gaps across seasons and agroecological zones without compromising oilseed and pulse cultivation.
- **Maize Research and Innovation:** The **Indian Council of Agricultural Research (ICAR)** highlighted the development of 329 maize hybrids over the past five years and called for strengthening the **All India Coordinated Research Project on Maize** (AICRP on Maize), focusing on:
  - High-yielding, nutritionally improved varieties resistant to biotic and abiotic stresses.
  - Advanced breeding techniques, germplasm conservation and mechanisation.
  - Affordable, quality seeds, particularly public-sector hybrids, supported by robust seed systems.
- **Food and Feed Safety:** Highlighted the **importance of aflatoxin management** to prevent contamination of maize used for human consumption and animal feed.
  - **Aflatoxins are toxic compounds** produced by certain Aspergillus fungi, posing risks to human and animal health.
- **Biofuel Potential:** Emphasised maize's growing importance as a feedstock for ethanol production, supporting India's bioenergy and energy-security objectives.
- **International Collaboration:** Encouraged stronger partnerships among research institutions, agricultural universities, industry and international organisations, including expertise associated with **CIMMYT (International Maize and Wheat Improvement Center).**
- **Maize Leading Producers (2025–26): United States,** China, Brazil, Argentina, European Union and **India** .

Read More: **Green Revolution in Maize**

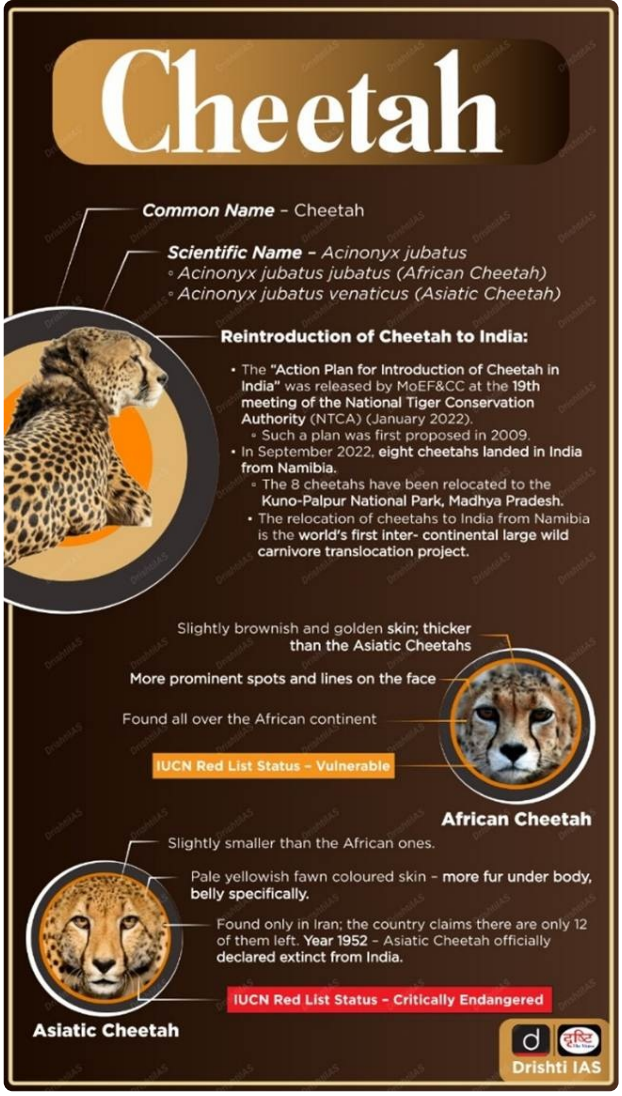
Satellite Tracking Limitations in Cheetah Conservation

★ ★ ☆ ☆ ☆

Source: IE

The death of KNG22, a 19-month-old cheetah associated with **Project Cheetah** at **Kuno National Park, Madhya Pradesh** , following injuries sustained outside the park, has highlighted the technological and geographical limitations of satellite-based wildlife monitoring.

- **Tracking Technology** : Monitoring teams at Kuno use a combination of **GPS -enabled satellite collars and Very High Frequency (VHF) radio telemetry** to track approximately 15 cheetahs.
  - **Satellite Collars:** Provide periodic geographical locations of animals across large and inaccessible landscapes.
  - **VHF Radio Telemetry:** Enables field teams equipped with radio receivers to locate animals more precisely within the transmitter's reception range.
- **Location Update Frequency:** Satellite collars are **generally programmed to transmit location data at six-hour intervals** to balance tracking requirements with battery life.
  - Missed transmissions can **extend gaps between updates to 12–18 hours,** highlighting that satellite collars do not provide continuous real-time tracking.
- **Technological Limitations:** Dense forest canopies, **rocky terrain, caves, deep valleys and poor satellite visibility** can interfere with GPS location acquisition or data transmission. A missed signal does not necessarily indicate collar malfunction.
- **Cheetah Movement:** Cheetahs typically travel around **6–8 km daily** , sometimes covering **12–15 km or more** , making it difficult for field teams to locate them using previously transmitted coordinates, particularly when they move beyond VHF reception range.



Read More: Project Cheetah

MINURSO's 35-Year Mission Ends

★ ★ ☆ ☆ ☆

Source: HT

Recently, the **United Nations Mission for the Referendum in Western Sahara (MINURSO)** entered its liquidation phase after the **UN Security Council (UNSC)** failed to renew its mandate due to a US–Russia standoff, ending its 35-year peacekeeping presence.

- **MINURSO:** Established in **April 1991 under UNSC Resolution 690 (1991)** to implement a UN-brokered settlement plan between Morocco and the Polisario Front.
- **Original Mandate:** Monitor the **ceasefire and organise a referendum on self-determination,**

allowing a choice between independence and integration with Morocco. The referendum never occurred due to disagreements over voter eligibility.

- **Ceasefire Breakdown (2020):** Hostilities resumed in November 2020, but MINURSO continued monitoring the **security situation and advocating cessation of hostilities.**
- **UN Security Council Standoff:** Russia vetoed a **US-backed draft resolution favouring Morocco's autonomy proposal** , which also sought to rename MINURSO as the UN Mission in Western Sahara (MINUSO).
  - A competing Russian resolution to extend MINURSO's mandate until October 2027 failed to secure the required votes, leaving the mission without a renewed mandate.
- **Continuing Right to Self-Determination:** The termination of MINURSO's mandate **does not change Western Sahara's disputed legal status or extinguish the Sahrawi people's right to self-determination.** **UN** -led diplomatic efforts may continue independently of the mission.

Western Sahara

- **About:** A disputed territory in **north-western Africa** along the **Atlantic Ocean** , bordered by **Morocco , Algeria and Mauritania.**
- **Colonial History:** Formerly a **Spanish colony, Western Sahara witnessed Morocco's Green March in 1975** and Spain's formal withdrawal in 1976. The territorial dispute subsequently centred on Morocco and the Polisario Front.
- **Morocco's Claim:** Morocco claims sovereignty over Western Sahara and administers most of the territory. Its 2007 autonomy proposal offers self-government under Moroccan sovereignty.
- **Polisario Front:** A **pro-independence movement** seeking an independent Sahrawi state. Backed by Algeria, it operates from refugee camps near Tindouf, Algeria.
- **International Status:** Western Sahara remains on the **UN list of Non-Self-Governing Territories,** while the African Union recognises the **Sahrawi Arab Democratic Republic (SADR).**



Read more: United Nations

Siri Cattle Conservation and Dairy Development in Sikkim

★ ★ ☆ ☆ ☆

Source: DD

Recently, the establishment of a **Centre of Excellence for Siri cattle in Sikkim** was announced **to conserve and develop the indigenous breed,** alongside the launch of the **North District Cooperative Milk Producers' Union** under **White Revolution 2.0** to strengthen dairy cooperatives and farmers' livelihoods.

- **Siri Cattle:** An **indigenous, dual-purpose cattle** breed found in the eastern Himalayan region, particularly **Sikkim and Darjeeling (West Bengal)** , and historically associated with **Bhutan, where it is known as Nublang.**
  - Adapted to **mountainous terrain,** it is distinguished by a **cervico-thoracic hump covered with long hair** and is used for milk production and agricultural work.
  - Its **declining population,** partly due to **crossbreeding,** highlights the need for **genetic conservation.**
- **Siri Cattle Conservation Initiatives:**
  - **Breed Conservation:** The Siri Cattle Conservation Programme aims **to preserve indigenous genetic resources, promote breed improvement and scientific breeding.**
  - **Infrastructure and Funding:** A **Siri Bull Mother Farm at Chuchachen, Pakyong district** , will support genetic improvement and quality germplasm production, backed by a ₹27.64 crore conservation project.
  - **IVF Technology:** A work plan has been proposed to introduce **In Vitro Fertilisation (IVF)** for faster genetic improvement and multiplication of superior animals.
- **White Revolution 2.0:** The North District Cooperative Milk Producers' Union Ltd was launched at Mangan to expand the **dairy cooperative network and increase farmers' participation.**
- **Sikkim Milk Brand:** **National Dairy Development Board (NDDB)** has been advised to prepare a plan for **dairy plant modernisation, cooperative expansion and development** of an integrated Sikkim Milk brand.
- **Pig Breeding Protocols** : Standard protocols for semen production and artificial insemination using liquid semen in pigs were released to improve genetic quality, productivity and biosecurity.

Read more: **Milk Fortification Project - Drishti IAS**